

		SUSTAINED; however, leave to amend is GRANTED as requested, to permit Plaintiffs to state a claim for fraudulent misrepresentation. The Case Management Conference is continued to October 08, 2026 at 09:00 am in Department C10.
3	Steinhardt vs. Capistrano Unified School District	Defendant Capistrano Unified School District (CUSD)’s motion for summary judgment is GRANTED. <u>Plaintiff’s Objections</u> The court OVERRULES objections nos. 1-3 (Decl. of Presby at ¶¶ 4-6 and Exhibits A and B), and nos. 6 and 7 (UMFs 2 and 13). The court DECLINES to rule on objection no. 4 pursuant to Code Civ. Proc. § 437, subd. q (“ the court need rule only on those objections to evidence that it deems material to its disposition of the motion”). The court SUSTAINS objection no. 5 (UMF 9) on the basis of speculation and lacks personal knowledge, but only as to “no CUSD official was aware of any concerns about Lutz’s behavior.” The court overrules any objection to the evidence provided in support of this UMF. <u>Defendant’s Objections</u> The court OVERRULES objections nos. 1-24 (Decl. of Friedman), and DECLINES to rule on objections nos. 25-28 (Decl. of Steinhardt) pursuant to Code Civ. Proc. § 437, subd. q. Defendant also objects, to, and moves to strike, Plaintiff’s entire additional separate statement of material fact (AUMF) on the basis that it contains 781 facts, many of which are immaterial. The court agrees that some of these facts are unnecessary. The court also finds that Plaintiff would sometimes refer to large groups of AUMFs in the arguments of her Opposition, which made it difficult to ascertain exactly which AUMFs she was relying on. (See Opp., at pg. 13 [referring to facts “Nos. 74-90”]; see also Opp. At pgs. 19 [referring to facts “Nos. 497-606”]). Nevertheless, the court finds that striking Plaintiff’s AUMF is a harsh and unnecessary remedy, and OVERRULES Defendant’s objections to the AUMF. However, the court admonishes Plaintiff that the separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion. (See Cal. R. Ct., rule 3.1350(d)). <u>Motions for Summary Judgment</u> “Summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving